

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/09/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0009539

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: PAUL SUNAK

vs.

DEFENDANT: USHA SUNAK, ET AL

NATURE OF PROCEEDINGS: MOTION - PRELIMINARY INJUNCTION

RULING

Plaintiff Paul Sunak's ("Plaintiff") motion for a preliminary injunction is **DENIED**.

BACKGROUND

This is a dispute between family members over possession of real property. Plaintiff alleges that beginning in November 2015, he leased real property at 5 Harbor Drive in Novato from Defendants Usha and Gurbax Sunak, who are Plaintiff's parents. (FAC,¹ ¶ 17 & Ex. B [commercial lease]; Sunak Dec., ¶ 2.) According to Plaintiff, the 5 Harbor Drive property "is primarily a commercial property with attached space that can be used as residential living space." (FAC, ¶ 16.) Plaintiff leased the property for business purposes. (*Id.* at ¶ 18; see also Sunak Dec., ¶ 3.) He alleges that he renewed his lease in August 2025. (FAC, ¶ 20.)

Plaintiff asserts that he and his parents contemplated that the property would be developed into a gas station and/or a marijuana dispensary. (FAC, ¶ 21.) They allegedly agreed that Defendants would lease a portion of the property to a third-party tenant to generate income while plans to develop the property into a gas station or dispensary were underway. (*Id.* at ¶ 22.) In December 2015, Defendants leased a garage on the property to A&C Towing and Transportation, Inc. on a month-to-month basis. (*Id.* at ¶ 23 & Ex. D.) According to the FAC, A&C Towing has since vacated the garage or transferred its interest in the garage to Valley Towing. (*Id.* at ¶ 28.)

¹ At the time Plaintiff filed this motion, the operative complaint was the original complaint, not the FAC. The FAC has not made any changes that are significant for purposes of this motion. Under these circumstances, Plaintiff's amending the complaint does not affect the order to show cause nor moot his motion for a preliminary injunction. (See *Ramos v. United Slate, Tile & Composition Roofers, Damp & Waterproof Workers Ass'n, Local No. 40 et al.*, 113 Cal.App.2d 31, 36.)

Plaintiff alleges that in early 2022, he began to have unspecified “personal disagreements” with Defendants. (FAC, ¶ 26.) In September 2022, Defendants allegedly repudiated their lease with Plaintiff and their agreement to develop the property into a gas station. (*Ibid.*) Plaintiff claims they broke the locks on his portion of the property in order to keep him out and have denied him entry since. (*Ibid.*)

According to the complaint, the parties’ lease agreement relating to 5 Harbor Drive in Novato was “one of several related and integrated agreements regarding sharing and management of multiple real properties.” (FAC, ¶ 61.) Plaintiff claims Defendants permitted him to live at a residential property they owned in Vallejo in exchange for \$75,000 per year. (*Ibid.*) He alleges that Defendants wrongfully ejected him from the Vallejo property “by throwing [him] out on the street, without a valid writ of possession or legal justification, using armed ‘security guards[,]’” adding that they interfered with \$300,000 worth of his personal possessions during this ejection. (*Id.* at ¶ 62.)

The FAC asserts a cause of action for breach of the lease agreement relating to 5 Harbor Drive. (FAC, ¶¶ 35-38.) Plaintiff requests both specific performance and injunctive relief in connection with this claim. (*Id.* at ¶¶ 45, 51, 57-58.) He further asserts claims for breach of the implied covenant of quiet enjoyment relating to 5 Harbor Drive (*id.* at ¶¶ 67-70); wrongful eviction from both 5 Harbor Drive and the Vallejo property (*id.* at ¶¶ 78-81); conversion, based on Defendants’ allegedly taking possession of rental funds from A&C Towing and Valley Towing that properly belonged to Plaintiff (*id.* at ¶¶ 96-97); tortious interference with business relations, on the theory that Defendants interfered with Plaintiff’s entitlement to A&C Towing’s rent payments and that Defendants’ kicking Plaintiff out of 5 Harbor Drive interfered with his business (*id.* at ¶¶ 104-109); conversion, based on Defendants’ allegedly interfering with Plaintiff’s possessions when ejecting him from the Vallejo property (*id.* at ¶¶ 117-118); and fraud, on the theory that Defendants made false representations to induce Plaintiff into entering into the parties’ agreements regarding 5 Harbor Drive and the Vallejo property (*id.* at ¶¶ 123-125).

Plaintiff now seeks a preliminary injunction requiring Defendants to give him possession of 5 Harbor Drive, refrain from interfering with that possession, and refrain from giving any third party a right to possess or occupy that property in a manner inconsistent with Plaintiff’s rights under the lease. (See Plntf.’s Proposed OSC.)

LEGAL STANDARD

A preliminary injunction may be granted, among other circumstances, “[w]hen it appears by the complaint or affidavits that the commission or continuance of some act during the litigation would produce waste, or great or irreparable injury, to a party to the action.” (Code Civ. Proc., § 526, subds. (a), (b).) The purpose of a preliminary injunction is to preserve the status quo until a final determination on the merits. (*Continental Baking Co. v Katz* (1968) 68 Cal.2d 512, 528.) The determination of whether to grant a preliminary injunction rests in the sound discretion of the trial court. (*Tahoe Keys Property Owners’ Assn. v. State Water Resources Control Bd.* (1994) 23 Cal.App.4th 1459, 1470 (“*Tahoe Keys*”).)

Motions for a preliminary injunction must be based on a verified complaint or on declarations. (Code Civ. Proc., § 527, subd. (a).) Trial courts evaluate two interrelated factors when deciding whether to issue a preliminary injunction. (*Pro-Family Advocates v. Gomez*

(1996) 46 Cal.App.4th 1674, 1680.) The first is the likelihood that the moving party will prevail at trial. (*Id.* at pp. 1680-1681.) The second is the interim harm the movant would likely sustain if the injunction were denied as compared to the harm the opposing party would likely suffer if the injunction were issued. (*Id.* at p. 1681.) “[T]he greater the [movant’s] showing on one” of the two preliminary injunction factors, “the less must be shown on the other to support an injunction.” (*Jamison v. Department of Transp.* (2016) 4 Cal.App.5th 356, 361-62.) The burden is on the moving party “to show all elements necessary to support issuance of a preliminary injunction.” (See *O’Connell v. Superior Court* (2006) 141 Cal.App.4th 1452, 1481.)

DISCUSSION

Mandatory preliminary injunctions, those that require a defendant to perform an affirmative act that changes the position of the parties, are rarely granted. “The granting of a mandatory injunction pending trial is not permitted except in extreme cases where the right thereto is clearly established.” (*Teachers Ins. & Annuity Ass’n v. Furlotti* (1999) 70 Cal.App.4th 1487, 1493 [citation and internal quotations omitted]; see also *Davenport v. Blue Cross of California* (1997) 52 Cal.App.4th 435, 446.) Plaintiff is seeking a mandatory injunction.

“The scope of available preliminary [injunctive] relief is necessarily limited by the scope of the relief likely to be obtained at trial on the merits.” (*Common Cause v. Board of Supervisors* (1989) 49 Cal.3d 432, 442.) This means that for a court to award a preliminary injunction, the nature of the injunction must be tied to the nature of the plaintiff’s claims. The plaintiff cannot request by preliminary injunction relief which, while it may have some relation to the facts of his lawsuit, is substantively unrelated to his claims or exceeds the scope of the relief he seeks in the case.

Here, Plaintiff is requesting that the Court issue a preliminary injunction granting him possession of the “entire[ty]” of 5 Harbor Drive in Novato, “including both the commercial and residential portions thereof[,]” and restraining Defendants from interfering with such possession. (Plntf.’s Proposed OSC.) Since filing the moving papers, Plaintiff has stated that he seeks narrower relief and only wants possession of “the residential portion of the property” via preliminary injunction. (Plntf.’s Dec. in Opp. to Defs.’ Special Motion to Strike [filed July 17, 2026], ¶ 19.) Either way, the relief sought exceeds the scope of the access to 5 Harbor Drive Plaintiff could obtain if he won his lawsuit.

Plaintiff’s entitlement to possession of 5 Harbor Drive is based on the commercial lease agreement between him and his parents. (See FAC, ¶¶ 17, 20, 26, 35-38 [alleging breach of the lease], 41, 45-51 [requesting specific performance of the lease], 67-70 [breach of the implied covenant of quiet enjoyment claim based on the lease], 76-80 [wrongful eviction claim based on the lease] & Exs. B [commercial lease], C [August 2025 renewal].) Pursuant to that lease, Plaintiff did not rent the entirety of the property at 5 Harbor Drive. He rented approximately 70% of the total square footage of rentable space at the property, an area expressly limited to the garage and the parking lot(s). (See FAC, Ex. B, §§ 1, 41 [“Rented premises include garage area and parking lots. Excluding premises needed for operation of Rossi’s Black Point Station, which operates convenient [sic] store and deli. Lease area is garage and the parking lot.”].)

Plaintiff has stated in a sworn declaration that the portion of 5 Harbor Drive he is trying to take possession of via preliminary injunction “IS NOT” the garage, but instead “the residential portion of the property.” (Plntf.’s Dec. in Opp. to Defs.’ Special Motion to Strike, ¶ 19.) Based

on Plaintiffs' depiction of the premises (*Ibid.* [referring the Court to Exhibit A to the FAC; FAC, Ex. A), what Plaintiff refers to as the "residential portion"² is affiliated with the deli/market at the property and so is not within the area Plaintiff rented according to the express terms of the commercial lease. (FAC, Ex. B, § 41; see also Usha Sunak Dec., ¶ 14.) Plaintiff cannot obtain possession of the "residential portion" of 5 Harbor Drive even if he is ultimately successful in this lawsuit to enforce his rights under the lease, so he cannot obtain it by preliminary injunction. His entitlement to that portion of the property is simply not at issue in this case on the face of the complaint, and his requested preliminary injunction is not tailored to the nature and scope of his lawsuit. It does not make sense to assess Plaintiff's likelihood of success on the merits under these circumstances, because the potential success of his claims has no bearing on whether he will ultimately be found entitled to relief consistent with what he seeks via preliminary injunction.

Plaintiff's showing of hardship is based primarily on his and his family's difficulty finding housing. Plaintiff's moving papers explain that before this dispute began, he, his wife, and his three children were living in a home in Vallejo belonging to his parents. (Plntf.'s Dec. in Supp. of Mot. for TRO, ¶¶ 2-3, 13.) Plaintiff states that his parents wrongfully evicted the family. (*Id.* at ¶ 13.) Plaintiff and his family moved into a converted garage on a friend's property in Contra Costa County. (*Id.* at ¶ 15.) That property was subsequently red-tagged, and the owner commenced eviction proceedings against Plaintiff. (*Ibid.*) Plaintiff's moving papers explain that he seeks a preliminary injunction giving him access to 5 Harbor Drive so that he can house his family there, because at the time he filed the moving papers on May 12, he expected that his family would be displaced from the garage in Contra Costa County, would have no realistic hope of finding alternative housing, and would be homeless. (*Id.* at ¶¶ 17-18, 23.) This exigency has passed. As of at least mid-July, Plaintiff and his family have had housing. (See Plntf.'s Dec. in Opp. to Defs.' Special Motion to Strike, ¶ 18.) To the extent Plaintiff's motion is also based on irreparable harm to his business interests due to loss of access to 5 Harbor Drive (see Memorandum, p. 10), Plaintiff has not provided evidence of any concrete, non-speculative business opportunity he stands to imminently lose due to his loss of access to this property.

The motion for a preliminary injunction is DENIED.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

² Defendants offer evidence that no portion of the property is equipped for residential living. (Usha Sunak Dec., ¶¶ 16-22.) According to Defendants, the area Plaintiff calls the "residential portion" consists of stockrooms serving the deli/market of the property and a small bathroom with a toilet and a sink. (*Id.* at ¶¶ 17-19.) The tiled shower area in that bathroom is nonfunctional and is used to store cleaning equipment. (*Id.* at ¶ 19 & Ex. B.) There is no kitchen, only a three-compartment sink for washing dishes and produce. (*Id.* at ¶ 21.)

The Zoom appearance information for September, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjjEOSHNzEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>